HEADNOTE

"1. A defendant company in China or Taiwan cannot, as a starting point, be served a Statement of claim via a company within the same group in a Contracting Member State. Such a group company cannot automatically be seen as a statutory seat, central administration or principal place of business of a defendant company in China or Taiwan, nor a place where such defendant has a permanent or temporary place of business.
2. Attempts to serve in China by any method provided for by the Hague Convention pursuant to R.274.1(a)(ii) RoP shall normally be made before service permitted by the law of the state where service is to be effected (R.274.1(b) RoP) or by alternative methods or at an alternative place (R.275 RoP) is permitted. Similarly, attempts to serve in Taiwan by diplomatic or consular channels pursuant to R.274.1(a)(iii) shall be made."

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Infringement action

PATENT
EP 2 792 100

METHOD AND DEVICE FOR SECURE COMMUNICATIONS OVER A NETWORK USING A HARDWARE SECURITY ENGINE

KEYWORDS
Service | Regulation (EU) 2020/1784 | the Hague Convention | Service outside the Contracting Member St...

Rule 274 Service outside the Contracting Member States

SUMMARY
The Court of Appeal Luxembourg ruled on an infringement action. The patent at issue relates to a method and device for secure communications over a network using a hardware security engine. According to the headnotes of the decision, a defendant company based in China or Taiwan cannot normally be served through a group company. Such a group company is located in a Contracting Member State. A group company cannot automatically be treated as the defendant's statutory seat or central administration. Furthermore, it cannot be presumed to be the defendant's principal place of business. In addition, it cannot be presumed to be a place where the defendant has permanent or temporary presence. Service attempts in China must normally follow Hague Convention methods first. These methods must be attempted before using alternative methods under the procedural rules. Similarly, service attempts in Taiwan should first pursue diplomatic or consular channels as specified.